IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT – IV

Item No. 303
CA(CAA)50/ND/2025

IN THE MATTER OF:
Blackbird Investments India Private Limited … Applicant
And
Jrg Healthcare India Private Limited

Under Section 230-232 of the Companies Act, 2013.

Order delivered on 03.06.2025

CORAM:
SHRI MANNI SANKARIAH SHANMUGA SUNDARAM,
HON'BLE MEMBER (JUDICIAL)
SHRI ATUL CHATURVEDI,
HON'BLE MEMBER (TECHNICAL)
PRESENT:
For the Applicant : Mr. Afnaan Siddiqui, Mr. Suman Jha,
Mr. Vikramaditya Das, Mr. Vaibhav Khurana,
Mr. Arman Siddiqui, Advs.
For the Respondent :

HYBRID HEARING (PHYSICAL & VC)

ORDER

This is a first motion application filed under Section 230 - 232 of the Companies Act, 2013 read with Rule 3 and Rule 5 of Companies (Compromises, Arrangements and Amalgamation) Rules 2016 seeking directions for dispensing with the meetings of Equity Shareholders. Secured and Unsecured Creditors of the Transferor Companies and Transferee Company in respect of the Proposed Scheme of Arrangement for Amalgamation of Blackbird Investments India Private Limited (Transferor Company No. 1/ Applicant Company No. 1) and JRG Healthcare India Private Limited (Transferor Company No. 2/ Non-Applicant Company) with and into JRG Engineering Polymers Private Limited (Transferee Company/ Applicant Company No. 2).

Mr. Afnaan Siddiqui, Learned Counsel for the petitioner is present physically and made submissions. It is observed that there are various affidavits in the petition which have to be verified. This Tribunal appoints Mr. Abhinav Yadav, Mobile No. 9169109676, E-mail ID: abhinavyadav103@gmail.com as a Court Commissioner for verification of the affidavits. Mr. Abhinav Yadav, Learned Court Commissioner is directed to verify the affidavit and file a report.

The Fees of the Learned Court Commissioner for the abovesaid verification of the affidavits shall be Rs. 30,000/-. The Learned Court Commissioner will file his report within seven days on receipt of copy of this order. The fees of the Learned Court Commissioner along with the travelling expenses shall be borne by the petitioner-companies.

A copy of this order shall be supplied to the Learned Court Commissioner and Learned Counsel for the petitioner-companies.

List on **15.07.2025**.

Sd/-
ATUL CHATURVEDI
MEMBER (TECHNICAL)

Sd/-
MANNI SANKARIAH SHANMUGA SUNDARAM
MEMBER (JUDICIAL)

MUKESH